

ORDER SHEET
IN THE LAHORE HIGH COURT,
Multan Bench, Multan
JUDICIAL DEPARTMENT

C.R. No.719 of 2025

Malik Hamid Raza v. Additional District Judge, etc.

S.No. of order/ proceeding	Date of order/ Proceeding.	Order with signature of Judge, and that of parties or counsel, where necessary.
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12.06.2025 Malik Ansar Abbas Dharalah, Advocate for the petitioner.

Through the instant civil revision, the petitioner has assailed the *vires* of impugned orders dated 17.04.2025 as well as 21.05.2025 passed by the learned courts below.

2. The brief facts of the case are that the petitioner filed a suit for declaration of non-paternity against respondent No.3, in which, he filed an application for conducting DNA test of the minor child, which was not contested by respondent No.3 and even she recorded her consent for the DNA test. Nonetheless, the learned trial Court dismissed the application *vide* order dated 17.04.2025. Feeling aggrieved of the said order, the petitioner filed an appeal which also met the same fate *vide* order dated 21.05.2025. Hence, this civil revision petition.

3. Learned counsel for the petitioner contends that impugned orders passed by the learned courts below are illegal, against the law and facts of the case, violative of natural justice and ignoring the express consent of both biological parents, therefore, same are liable to be *set aside*.

4. I have heard the arguments advanced by learned counsel for the petitioner and gone through the record minutely with his able assistance.

C.R. No.719/2025

5. It is the consistent view of the Supreme Court of Pakistan that DNA tests cannot be conducted in civil matters without the consent of parties. However, this case presents a unique factual configuration where both parties i.e. the father (petitioner) and the mother (respondent) have expressed willingness for the minor girl to undergo a DNA test to determine the paternity.

6. The key issue in this case is; Whether a court should order a DNA test of a minor to determine paternity when both parties have given their consent in order to determine the paternity.

7. Given that the minor is unable to defend herself or give consent, it is imperative that the court exercises extra caution when dealing with matters concerning her welfare and interests. The court must take a proactive and protective role to ensure that the minor's rights are safeguarded and her best interests are prioritized.

8. Though the parents, as natural guardians, can generally provide consent on behalf of a minor, this principle is not absolute. This Court as well as Supreme Court of Pakistan in number of cases has held that when a minor's interests are at stake in litigation, the court may override parental consent if it observes that such consent is not in the best interest of the minor. The court's primary consideration is the welfare of minor, and it may intervene to protect the rights of minor even if it means *setting aside* parental decisions/wishes.

9. Any decision rendered by this Court on this specific issue may have significant implications and potentially conflict with the consistent view of the Supreme Court of Pakistan on similar matters. Therefore, it is crucial to align with established precedents to maintain jurisprudential consistency.

C.R. No.719/2025

10. The role of the Court is not only to decide legal disputes but also to protect human dignity, especially where the rights of a minor are involved. When scientific tools like DNA testing are used to resolve questions of paternity, the Court must act with caution. A child may not be able to speak for herself, but she still has constitutional rights such as the right to privacy, dignity, and protection from emotional harm. The law places the child's welfare above all other concerns. Even if both parents agree to a DNA test, the Court must still consider whether such a test is in the best interest of the child.

11. The use of DNA testing in legal proceedings, particularly in matters of paternity, is a serious judicial act, not to be undertaken lightly or on mere request. It is not the availability of technology or the consent of parties that alone justifies such testing, but whether its purpose truly serves the ends of justice. DNA test may have value, but not at the cost of a child's mental and emotional well-being.

12. Reverting to current lis, this Court has given its anxious consideration to the facts of the present case and the reasoning employed by the learned Trial and Appellate Courts. The petitioner has challenged paternity and sought DNA testing of the minor child, citing prolonged absence of cohabitation with the mother. While both parents have expressed willingness for the test, the learned courts below have rightly held that at this preliminary stage, the application is premature, particularly when evidence of the parties is yet to be recorded. Furthermore, it has, by now, well-settled that DNA evidence is not conclusive rather it serves as corroborative evidence.

C.R. No.719/2025

13. The learned courts below have applied the correct test under Article 128 and rightly concluded that the conclusive presumption of legitimacy cannot be displaced at this stage. They have not shut the door on the DNA test altogether, but have deferred the question until the trial court is equipped with a complete evidentiary record. This approach is consistent with both law and judicial prudence. It upholds the minor's right to be shielded from premature harm while preserving the petitioner's right to contest paternity if the facts ultimately so warrant.

14. This Court in constitutional jurisdiction does not interfere in discretionary orders passed by subordinate courts in a routine matter, especially where no jurisdictional error, illegality, or perversity is shown. In the present matter, the impugned orders reflect a careful balancing of legal principles, evidentiary readiness, and the child's welfare.

15. In view of the foregoing, no case for interference is made out. The writ petition is found to be devoid of merit and is accordingly ***dismissed***.

(Syed Ahsan Raza Kazmi)
Judge

APPROVED FOR REPORTING

Judge